

26STCP00757 26STCP00757

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-25

Motion: PLAINTIFF'S MOTION TO OBTAIN CELLULAR PHONE RECORDS FROM THIRD-PARTY OR ENFORCE DEPOSITION SUBPOENA

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Case Number: 26STCP00757 Hearing Date: August 25, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

INFINITY

INSURANCE COMPANY,

Petitioner/Insurer,

vs.

ASTRI MATALLANA CASTILLO,

Respondents/Insured.

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CASE NO.: 26STCP00757

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
TO OBTAIN CELLULAR PHONE RECORDS FROM THIRD-PARTY OR ENFORCE DEPOSITION
SUBPOENA

Dept. 733

8:30 a.m.

August 25, 2026

I.

INTRODUCTION

On February 23,
2026, Infinity Insurance Company ("Infinity") filed a petition with the Court
for the purpose of issuing subpoenas to witnesses.

Infinity Insurance

Company is an insurer on a claim submitted by its insured, Astri Matallana
Castillo ("Castillo"), for a vehicle theft incident that occurred on November
22, 2025, within the jurisdiction of the Los Angeles County Superior Court. As
part of the claim investigation being conducted by Infinity, the insured is
required to produce cell phone records from November 22, 2025 to November 23,
2025, with "push-to-talk" call information and tower site
information. Spectrum ("Spectrum"), the insured's cell phone provider, will not
release any records without a Subpoena. (Petition, ¶¶ 1-2.)

On May 19, 2026, Infinity
filed the instant motion to obtain cellular phone records from Spectrum or
alternatively, to enforce the deposition subpoena served on Spectrum.

No opposition was
filed.

II.

LEGAL STANDARD

Code of Civil Procedure
section 1987.1(a) states, in relevant part:

If a subpoena requires the attendance of a witness or the
production of books, documents, or other things before a court, or at the trial
of an issue therein, or at the taking of a deposition, the court, upon motion .
. . . may make an order . . . directing compliance with it upon those terms
or conditions as the court shall declare, including protective orders. In
addition, the court may make any other order as may be appropriate to protect
the person from unreasonable or oppressive demands, including unreasonable
violations of the right of privacy of the person.

(Code Civ. Proc. § 1987.1(a).)

There is no meet and confer requirement in section 1987.1.

There is also no requirement for a separate statement when no response has been
provided to the request for discovery. (Cal. Rules of Court Rule 3.1345(b)(1).)

Furthermore, there is no requirement for a showing of good cause for production
of documents in connection with a deposition subpoena. (Code Civ. Proc. §
2020.510(b); Terry v. SLICO (2009) 175 Cal.App.4th 352, 358.) The motion shall be accompanied by a
declaration showing a reasonable and good faith attempt at informal resolution
of the dispute between the party requesting the personal records and the
consumer or the consumer's attorney. (Code Civ. Proc., § 1985.3, subd. (g).)

III.

DISCUSSION

Infinity
moves this Court for an order to obtain cellular phone records from Verizon

(Spectrum is a Mobile Virtual Network Operator that utilizes Verizon's network) including push to talk, text message, data usage, call and tower site information for the phone number (661) 492-1350, the number for Petitioner's insured, Castillo, for the period of November 22, 2025, through November 23, 2025. Infinity seeks the production of these cellular phone records on the grounds that: (1) the documents sought are relevant to evaluate the claim submitted by Infinity's insured, Castillo (theft claim that occurred on or about November 22, 2025, (2) Castillo has agreed to voluntarily produce the documents sought and signed a consent form as to same, and (3) Verizon has advised Infinity that a subpoena with Castillo's signed consent is insufficient to release the requested cell phone records, and a court order will be necessary.

Here, Castillo entered into a vehicle liability insurance contract with Infinity, which provides that Castillo agree to cooperate with Infinity regarding the investigation of any claim made for coverage. (Colman Decl., ¶ 4.) Verizon then sent Infinity a response and objected to the compliance of the deposition subpoena, stating that "The documents/information you are requesting require a court order." (Id., Ex. C.) The Court finds that production of the requested records necessary to allow Infinity to assess proper coverage pertaining to the investigation into Castillo's claims vehicle theft incident. (See *Gilbert v. Infinity Ins. Co.* (C.D. Cal. 2016) 186 F. Supp. 3d 1075, 1086 ["Defendant required the cellphone records in order to determine if there was coverage for the damage sustained to Plaintiff's truck, and Plaintiff's failure to provide them constitutes failure to cooperate."].) Thus, the Court finds that Infinity has demonstrated good cause to compel Verizon's compliance with the deposition subpoena.

Infinity has served the instant motion upon both Castillo and Verizon. The instant motion is also timely, as Infinity served the subpoena upon Verizon on March 20, 2026 and the motion was filed on May 19, 2026. (Colman Decl., ¶ 7.) The Court lastly notes that the instant motion is unopposed by either Castillo or Verizon. Castillo has actually signed and notarized a Consent to disclose and release the record. (Id., ¶ 7, Ex. B.)

The Court grants Infinity's motion.

IV.
CONCLUSION

Based on the
foregoing, Infinity's motion to obtain cellular records from Verizon
or alternatively, to enforce deposition subpoena is GRANTED.

Dated this 25th
day of August 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court